

25LBCV01985 25LBCV01985

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

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Case Number: 25LBCV01985 Hearing Date: June 23, 2026 Dept: S27

Defendant filed summary judgment

motion on 4/10/26, setting it for hearing on 6/23/26. Plaintiff objects to the motion, correctly

noting that the moving papers were neither filed nor served at least 81 days

prior to the hearing date, as required by CCP §437c. Plaintiff correctly notes that this defect is

jurisdictional and the Court is without power to rule on the motion in light of

the defect.

Defendant, in reply, contends (a)

the motion is scheduled to be heard the requisite number of days prior to

trial, (b) Plaintiff fully briefed the merits of the motion, and (c) the

hearing on the motion can be continued to cure any error.

CCP §437c(a) requires a summary

judgment motion to be heard at least thirty days prior to trial. Defendant's chosen hearing date does, indeed,

comply with this requirement. §437c(a)

also includes a requirement, however, that the motion be filed and served at

least 81 days prior to the hearing. This

is a separate and distinct requirement, and the fact that the motion is set for

hearing more than 30 days prior to trial does not affect the requirement that

it be filed and served at least 81 days prior to the hearing. See *McMahon v. Superior Court* (2003) 106

Cal.App.4th 112, 116, making clear that the 81-day notice period

CANNOT be shortened absent express consent from the opposing party.

The request to continue the motion

is also denied. The Court is without

power to continue the hearing on a defectively served summary judgment

motion. See *Robinson v. Woods* (2008) 168

Cal.App.4th 1258, 1268, which holds that, when the moving party

notices the hearing in less than the required time, notice must begin anew, and

the Court cannot cure the defect by continuing the hearing for the missing

number of days.

The motion is taken off calendar

due to the service defect.

Defendant is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If any party does not submit on the tentative, the party should make arrangements to appear remotely at the hearing on this matter.